

estimate to Plaintiff and that its allegations made in the SACC related thereto were made in error. The invoice also does not appear to be a written contract, but rather a request for payment. As there is no identification of a written contract that was breached, Plaintiff has met its initial burden of showing one or more elements of the COA cannot be established. (Code of Civil Procedure section 437c, subdivision (p)(2).) Similarly, while the invoice is evidence of an agreement between the parties, the documents identified do not form an oral contract and Defendant did not produce the terms of such contract. Defendant also did not provide any specific opposition to these COA. The Motion is **GRANTED** as to COA Nos. 1 and 2.

As to COA No. 3 for reasonable value of services, Plaintiff's only argument is again that Defendant cannot produce credible evidence regarding the purchase or installation of the subject parts. However, as noted with the COA to the FAC, Plaintiff has not met its initial burden of producing evidence supporting that argument. Similarly, Plaintiff's affirmative defenses are not supported by evidence. The Motion is **DENIED** as to COA No. 3.

Request to Take Judicial Notice:

Granted pursuant to Evid. Code § 452(d) as to Nos. 1 and 2.

Plaintiff's Objections:

Sustained as to Nos. 1 (Improper legal conclusion, no basis, mischaracterizes evidence – Related only to statements regarding McDaniel as MSJ by McDaniel was previously granted summary judgment filed by McDaniel holding there was no written contract for payment by McDaniel to TYW and McDaniel cannot be held personally liable for the contract between TYW and Plaintiff. ROA 259.);